TITLE 8.—ALIENS AND NATIONALITY

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CROSS REFERENCES

Enemy aliens, see chapter 3 of Title 50, War and National Defense.

Chapter 1.—GENERAL PROVISIONS

§§ 1—18. Repealed or Omitted.

These sections, relating to citizenship, were affected by the Nationality Act of 1940, former section 501 et seq. of this title.

That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation, and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by former section 904 of this title. See the notes below for history of individual sections.

SECTION 1, relating to citizenship of persons born in the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. It was from R. S. § 1992, which was revised from act Apr. 9, 1866, ch. 31, § 1, 14 Stat. 27. Similar provisions were contained in former section 601 (a) of this title, and present provisions are contained in section 1401 of this title.

SECTION 2, related to citizenship of persons born in Territory of Oregon. It was from R. S. § 1995, which was revised from act May 18, 1872, ch. 172, § 3, 17 Stat. 134.

SECTIONS 3—3c, related to citizenship of Indians. Section 3 was from acts Feb. 8, 1887, ch. 119, § 6, 24 Stat. 390; Mar. 3, 1901, ch. 868, 31 Stat. 1447; May 8, 1906, ch. 2348, 34 Stat. 182; Nov. 6, 1919, ch. 95, 41 Stat. 350; Mar. 3, 1921, ch. 120, § 3, 41 Stat. 1250; June 2, 1924, ch. 233, 43 Stat. 253; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1173. Section 3a was from act June 19, 1930, ch. 544, 46 Stat. 787. Sections 3b and 3c were from act May 7, 1934, ch. 221, §§ 1, 2, respectively, 48 Stat. 667.

SECTION 4, related to citizenship of Hawaiians. It was from act Apr. 30, 1900, ch. 339, § 4, 31 Stat. 141. Present provisions are contained in section 1405 of this title.

SECTIONS 5 and 5a, related to citizenship of Puerto Ricans. They were from act Mar. 2, 1917, ch. 145, §§ 5, 5a, respectively, 39 Stat. 953, as amended Mar. 4, 1927, ch. 503, § 2, 44 Stat. 1418; May 17, 1932, ch. 190, 47 Stat. 158. Present provisions are contained in section 1402 of this title.

SECTION 5a–1, making a further extension of time for Puerto Ricans to become citizens in cases of misinformation regarding status, was repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1174. It was from act May 16, 1938, ch. 225, 52 Stat. 377. Present provisions are contained in former sections of this title.

SECTIONS 5b and 5c, related to citizenship of inhabitants of the Virgin Islands. They were from act Feb. 25, 1927, ch. 192, §§ 1, 3, respectively, 44 Stat. 1234, 1235, as amended May 17, 1932, ch. 190, 47 Stat. 158; June 28, 1932, ch. 283, § 5, 47 Stat. 336. Present provisions are contained in section 1406 of this title.

SECTIONS 5d—9a were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Sections 5d and 5e, relating to citizenship of persons born in Canal Zone or Panama, were from act Aug. 4, 1937, ch. 563, §§ 1, 2, respectively, 50 Stat. 558; present provisions are contained in section 1403 of this title. Section 6, relating to citizenship of children born outside the United States, was from R. S. § 1993 (revised from acts Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; Feb. 10, 1855, ch. 71, § 1, 10 Stat. 604); act Mar. 2, 1907, ch. 2534, §§ 6, 7, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 1, 48 Stat. 797; present provision are contained in sections 1431—1433 of this title. Section 7, relating to citizenship of children of persons naturalized under certain laws, was from R. S. § 2172, which was revised from act Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; present provisions are contained in section 1432 of this title. Section 8, relating to citizenship, upon parent's naturalization, of children born abroad of alien parents, was from act Mar. 2, 1907, ch. 2534, § 5, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 2, 48 Stat. 797; present provisions are contained in section 1432 of this title. Section 9, relating to citizenship of women citizens as affected by marriage, was from acts Sept. 22, 1922, ch. 411, § 3 (a), 42 Stat. 1022; July 3, 1930, ch. 835, § 1, 46 Stat. 854; Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511; Present provisions are contained in section 1435 of this title. Section 9a, relating to repatriation of native-born women married to aliens prior to Sept. 22, 1922, was from act June 25, 1936, ch. 801, 49 Stat. 1917, as amended July 2, 1940, ch. 509, 54 Stat. 715; present provisions are contained in section 1435 (c) of this title.

SECTION 10, related to the effect of certain repeals on citizenship of women marrying citizens. It was from act Sept. 22, 1922, ch. 411, § 6, 42 Stat. 1022.

SECTIONS 11 and 12, related to forfeiture of citizenship for desertion from armed forces. Section 11 was from R. S. § 1998 (revised from act Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490) as amended by acts Aug. 22, 1912, ch. 336, § 1, 37 Stat. 356; Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 12 was from R. S. §§ 1996, 1997, which were revised from acts Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490, and July 19, 1867, ch. 28, 15 Stat. 14, respectively.

SECTIONS 13 and 14, relating to the protection of citizens when abroad, were transferred to sections 1731 and 1732 of Title 22, Foreign Relations and Intercourse.

SECTION 15, R. S. § 1999, relating to right of expatriation, was omitted from this Code, and is now covered by sections 1482 and 1483 of this title.

SECTIONS 16—18, relating to loss of citizenship, were repealed by act Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172. Section 16 was from act Mar. 2, 1907, ch. 2534, § 2, 34 Stat. 1228. Section 17 was from act Mar. 2, 1907, ch. 2534, §§ 2, 7, 34 Stat. 1228, 1229; present provisions are contained in sections 1481 (a), and 1484 of this title. Section 17a was from act May 24, 1934, ch. 344, § 3, 48 Stat. 797; present provisions are contained in section 1481 (a) of this title. Section 18 was from acts June 19, 1906, ch. 3592, § 4 (12), 34 Stat. 596; May 9, 1918, ch. 69, § 1, 40 Stat. 545; June 21, 1930, ch. 559, 46 Stat. 791; present provisions are contained in former sections 1438 (a), 1454, 1455, 1459 of this title.

Chapter 2.—ELECTIVE FRANCHISE

§§ 31, 32. Transferred.

CODIFICATION

Sections 31 and 32 transferred to sections 1971 and 1972, respectively, of Title 42, The Public Health and Welfare.

Chapter 3.—CIVIL RIGHTS

§§ 41—43. Transferred.

CODIFICATION

Sections 41—43 transferred to sections 1981—1988, respectively, of Title 42, The Public Health and Welfare.

§§ 44, 45. Repealed. June 25, 1948, ch. 645, § 21, 62 Stat. 862, eff. Sept. 1, 1948.

Section 44, act Mar. 1, 1875, ch. 114, § 4, 18 Stat. 336, related to exclusion of jurors on account of race or color, and is now covered by section 243 of Title 13, Crimes and Criminal Procedure.

Section 45, acts Mar. 1, 1875, ch. 114, § 3, 18 Stat. 336; May 28, 1896, ch. 252, § 19, 29 Stat. 184, related to prosecutions for banning jurors because of race or color, and is now covered by section 243 of Title 18, Crimes and Criminal Procedure.

§§ 46—51. Transferred.

CODIFICATION

Sections 46—51 transferred to sections 1984—1990, respectively, of Title 42, The Public Health and Welfare.

§ 52. Repealed. June 25, 1948, ch. 646, § 39, 62 Stat. 992, eff. Sept. 1, 1948.

Section R. S. § 1986; acts May 28, 1896, ch. 252, § 6, 29 Stat. 179; Feb. 26, 1919, ch. 49, § 1, 40 Stat. 1182; Feb. 11, 1921, ch. 46, 41 Stat. 1099, related to fees of district attorneys, marshals, and clerks of court.

§§ 53—56. Transferred.

CODIFICATION

Sections 53—56 transferred to sections 1991—1994, respectively, of Title 42, The Public Health and Welfare.

Chapter 4.—FREEDMEN

§§ 61—65. Omitted.

CODIFICATION

Section 61, R. S. 2032, related to continuation of laws then in force, and is omitted as obsolete.

Section 62, R. S. 2033, related to enforcement of laws by former Secretary of War, and is omitted as obsolete.

Section 63, acts Mar. 3, 1879, ch. 182, § 2, 20 Stat. 402; Feb. 1, 1888, ch. 4, § 1, 25 Stat. 9; July 1, 1898, ch. 546, 30 Stat. 640, related to claims for pay or bounty, and is omitted as obsolete.

Section 64, act July 1, 1902, ch. 1351, 32 Stat. 556, related to retained bounty fund, and is omitted as obsolete.

Section 65, R. S. § 2037, related to wives and children of colored soldiers, and is omitted as executed.

Chapter 5.—ALIEN OWNERSHIP OF LAND

§§ 71—78. Transferred.

CODIFICATION

Sections 71—78 transferred to sections 1501—1508, respectively, of Title 48, Territories and Insular Possessions.

§§ 79—82. Omitted.

CODIFICATION

Sections related to alien ownership of real estate in the District of Columbia. Sections 79—81 were from act Mar. 3, 1887, ch. 340, §§ 1, 2, 4, respectively, 24 Stat. 476, 477, as specifically excepted from amendment by act Mar. 2, 1897, ch. 363, 29 Stat. 618 (for said act Mar. 3, 1887, as amended by the 1897 act, see sections 1501—1507 of Title 48, Territories and Insular Possessions); and section 82 was from act Mar. 9, 1888, ch. 30, 25 Stat. 45.

Said sections 1, 2 and 4 of the 1887 act, and the act of 1888 were incorporated in sections 396—398 of the District of Columbia Code enacted by act Mar. 3, 1901, ch. 854, 31 Stat. 1252, and amended by act June 30, 1902, ch. 1329, 32 Stat. 530. Said sections 396—398 of the 1901 D. C. Code, as so amended, were omitted from the 1929 D. C. Code as having been superseded by section 1503 of Title 48, Territories and Insular Possessions, but they were set out as sections 45–1502, 45–1503 and 45–1504 of the 1940 D. C. Code, and said act of 1888 was set out as section 45–1505 of such Code.

§§ 83—86. Transferred.

CODIFICATION

Sections 83—86 transferred to sections 1509—1512, respectively, of Title 48, Territories and Insular Possessions.

Chapter 6.—IMMIGRATION

SUBCHAPTER I.—IMMIGRATION AND NATURALIZATION AGENCIES, OFFICERS, AND STATIONS

Sec.
100, 101. Transferred.
102. Repealed.
103. Commissioner of Immigration and Naturalization; administration of alien contract labor laws.
103a. Reimbursement of expenses incurred by other agencies of Federal, State, and local governments.
104—106c. Repealed.
107. Commissioners of immigration; appointments.
108, 109. Repealed.
109a—109d. Transferred.
110. Repealed.
111, 112. Transferred.
113. Repealed.
114. Lease of immigrant station at Charleston.
115—117. Repealed.
118. Motor vehicles for enforcement of immigration and Chinese exclusion laws.

SUBCHAPTER II.—REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

131. Control of immigration.
132—173. Repealed.
174. Finality of decisions of immigration officers.
175—181. Repealed.

SUBCHAPTER III.—QUOTA AND NONQUOTA IMMIGRANTS

201—204. Repealed.
204a, 204b. Native of Virgin Islands residing in foreign countries.
204c—227. Repealed.
228. Certain aliens admitted in excess of quotas permitted to remain.
229—231. Repealed.
232—237. Omitted.
238. Prevention of transportation in foreign commerce of alien women and girls under international agreement; Commissioner designated as authority to receive and preserve information.
239. Admission of alien spouses and minor children of members of armed services.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

241—246. Repealed.